faced revolt and reaction. This reaction against the sovereign and supreme state resulted into the dawn of pluralism.

John Austin (1780-1859) the English Jurist, gave an elaborate exposition of the Legal Theory of sovereignty in is book 'Lectures on Jurisprudence' published in 1832. He is regarded as a greatest exponent of Monistic Theory.



Is Pluralism important?

- Pluralism upholds the importance of associations and claim more autonomy for it.
- For democracy to flourish the sovereign state must not be subject to any legal authority.
- Division of sovereignty leads to the destruction of sovereignty and in the absence of sovereignty, anarchy will prevail in society.

Indian Constitution and Sovereignty

In Indira Gandhi Vs Raj Narain (1975) case Supreme Court added, 'India as a Sovereign democratic republic' as one of the fundamental elements of the basic structure of the constitution. It is understood that Indian constitution enshrines 'sovereignty' as an important aspect of constitution and the preamble makes the people sovereign . In simple term it is said that sovereignty lies in the constitution and people are the ultimate source of the constitution.

What are the criticisms for Pluralism?

- It is the Sovereign state that brings about unity and regulates all the associations existing in society.
- Laws are framed by the state unlike the belief of pluralist.
- State is needed for protecting people from the excess of associations.

3.2 EQUALITY

Introduction

Understanding Equality



The idea that human beings are equal is enigmatic. A nation that seeks equality creates laws to bring change in its society. A law for equality is inadequate and opposed where pluralistic pattern of society has become the order of the day whether it's a developed or under developed nation. Liberty and rights lead to a third principle in political theory, which is of equality. Equality determines how rights are to be distributed amongst the individuals as citizens and groups, both whether equally or unequally.

3.2.1 Meaning of Equality

Equality, which means state of being equal, is derived from aequs/aequalis, meaning fair. It signifies 'having the same rights, privileges, treatments, status, and opportunities'. Equality is treated as something that relates to distributive principle because of which rights, treatments, and opportunities are distributed amongst the beneficiaries in a fair manner. Fairness

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